

Tentative Rulings and Resolution Review Hearings
June 1, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

AMUR EQUIPMENT FINANCE, INC. VS. HILLSIDE DRILLING, INC., ET AL.

CASE NUMBER: 25CV-0206947

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 20, 2026, to Plaintiff for failure to comply with the Court's prior ruling. Plaintiff has submitted a Declaration in response to the OSC which satisfactorily explains the failure to comply. The OSC is **DISHCHARGED**. No sanctions will be imposed. No appearance is necessary on today's calendar. This matter is also set for a review hearing regarding status today at 9:00 a.m.

CAICEDO VS. SUNBABE, LTD

CASE NUMBER: 25CV-0208229

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 15, 2026, to Plaintiff and counsel for failure timely serve Defendant as required by CRC 3.110(b). No declaration in response to the OSC has been filed. However, proof of service of summons has been filed. The OSC is **DISHCHARGED**. No sanctions will be imposed. This matter is set for review regarding status of responsive pleadings on **Monday, July 13, 2026 at 9:00 a.m. in Department 64.** No appearance is necessary on today's calendar.

CASTELLANOS, ET AL. VS. BEAR TRACKS HOLDINGS, LLC

CASE NUMBER: 25CV-0207058

Tentative Ruling on Motion for Preliminary Approval of Class Action Settlement:

Plaintiffs Genaro Castellanos and Alejandro Gandarilla Parra move for an Order granting preliminary approval of a proposed class action and Private Attorneys General Act (PAGA) settlement between Plaintiffs and Defendant Bear Tracks Holdings, LLC. The Motion is properly noticed and unopposed.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Nearby v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other grounds). However, courts cannot automatically and instantly

approve a proposed settlement or dismiss a class action suit, even if the representative plaintiff and defendant have agreed on the terms of such settlement or dismissal. In a class action, the trial court has a duty to adequately protect the members of the class. *Bingham v. Obledo* (1983) 147 Cal. App. 3d 401, 406. Courts have long recognized that a class action may deprive an absent class member of the opportunity to independently press their claim, preclude a defendant from defending each individual claim to its fullest, and even deprive a litigant of a constitutional right. As such, a settlement or compromise of an entire class action, or a cause of action in a class action, or as to a party, requires the approval of the court after hearing. CRC 3.769(a). This takes two steps: (1) a preliminary review by the trial court, and (2) a final review after notice has been distributed to the class members.

The fundamental question for a preliminary review is whether the settlement is fair, adequate and reasonable. The purpose of this requirement is the protection of those class members, including the named plaintiffs, whose rights may not have been given due regard by the negotiating parties. *Dunk v. Ford Motor Co.* (1996) 48 Cal. App. 4th 1794, 1801. The trial court has broad discretion to determine whether the settlement is fair. It should consider relevant factors, such as: (1) the strength of plaintiff's case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exhaustive and should be tailored to each case. *Id.*

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 225 (disapproved on other grounds by *Hernandez v. Restoration Hardware* (2018) 4 Cal. 5th 260).

Class Certification and Approval of Class Representative. A class action may be maintained "when the question is one of common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court." CCP § 382. "The 'community of interest' requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." *Gattuso v. Harte-Hanks Shoppers, Inc.* (2007) 42 Cal. 4th 554, 575. Here, the settlement class is approximately 474 individuals employed by Bear Tracks Holdings, LLC in California and classified as non-exempt who worked for Bear Tracks Holdings, LLC during the Class Period, which is defined as January 10, 2021 until February 16, 2026, and who did not sign an arbitration clause. There appears to be a community of interest. There are common questions of law and fact because the proposed class members all worked for the same employer and were subject to the same employment practices and policies and same wage and hour laws. The class members have a representative who appears to be similarly situated as an employee of Defendant during the Class Period. Counsel has provided evidence that Plaintiff's claims are typical of the class. The Court certifies the class for the purpose of settlement and confirms Genaro Castellanos and Alejandro Gandarilla Parra as the class representatives.

Approval of Class Counsel. Plaintiffs' counsel has demonstrated their experience and familiarity

with class action cases, including employment and wage-and-hour disputes. Plaintiffs' counsel have provided evidence that they are well versed in class actions, particularly of this nature, and have the competence to be appointed as Class Counsel. The Court appoints Starpoint, LC and Southern California Attorneys, APC as class counsel for settlement purposes.

Approval of Settlement Administrator. A representative of proposed settlement administrator, ILYM Group, Inc., has provided evidence of the administrator's qualifications which the Court finds sufficient.

Fairness of Settlement and Plan of Allocation. Preliminary approval of a class action settlement constitutes a conditional finding that the settlement appears to be in the range of acceptable settlements. The Court has broad discretion to determine whether the settlement is fair. *Dunk v. Ford Motor Company, supra*, 48 Cal. App. 4th at 1801. As noted above, factors relevant to the court's determination include, but are not limited to, the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, and the experience and views of counsel. *Id.* There is a presumption of fairness where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; and (3) counsel is experienced in similar litigation. *Id.* at 1802.

The settlement here was the result of arm's-length negotiation through mediation with an experienced mediator following informal discovery. The declarations of counsel provide analysis of each claim that included the maximum overall exposure, discounts applied, and the realistic exposure. The proposed settlement is within the ballpark of the realistic exposure in this matter. Settling avoids the added costs of litigation to certify the class and to try the matter. It also avoids the possibility that putative class members will have no recovery at all. The Court finds the settlement to be fair, adequate, and reasonable.

Total Settlement Amount	\$573,000
Proposed Attorneys' Fees (up to 1/3)	-\$191,000
Litigation Costs and Expenses (up to)	-\$25,000
Settlement Administration Costs (up to)	-\$15,000
Proposed Class Representative Enhancement (both Plaintiffs)	-\$20,000
PAGA Claim Settlement Allocation	\$100,000
Payment to LWDA (65%)	(-\$65,000)
Payment to Class Members (35%)	(\$35,000)
Settlement to be Disbursed to Class Members	\$257,000

Attorney Fees and Costs: Counsel seeks up to \$191,000 in attorney fees and up to \$25,000 in litigation costs. Counsel has provided evidence of their expertise in the area, the risk of taking the case given that no payment is provided until settlement, and efforts put forth to prosecute the case. The Court will not approve the amount of attorney fees until the final approval hearing. The Court cannot award attorney fees without reviewing information about counsel's hourly rate and the time spent on the case. This is the law even if the parties have agreed to the fees. *Robbins v. Alibrandi* (2005) 127 Cal. App. 4th 438, 450-451. At the time of the final approval hearing, the Court will review the evidence provided by Class Counsel. In addition to the hourly rate and hours spent on the case, Class Counsel should provide admissible evidence supporting the hourly fee requested

including, if applicable, whether Class Counsel charges fee-paying clients the same rates. The Court will likewise not approve final costs until the final hearing as that is when Class Counsel can provide evidence of the specific costs incurred as part of this litigation.

Enhancement Award: The settlement provides for an enhancement award of \$10,000 to each of the named Plaintiffs as the Class Representatives. The Court will not approve the amount of the Plaintiff's enhancement award until the final approval hearing. With the final approval motion, a plaintiff should provide admissible evidence to support the request, e.g. the number of hours of service provided, the nature of the work performed, the risks faced in prosecuting this lawsuit, including any actual retaliation, and/or other evidence demonstrating the need for an incentive payment. See *Clark v. American Residential Services, LLC* (2009) 175 Cal. App. 4th 785, 804-807.

Settlement Administration Costs: Settlement administration costs have been requested in an amount up to \$21,000. This matter was first on calendar for hearing on May 18, 2026. The Court's tentative noted that there was a discrepancy between the estimated class size set forth in the briefing, and the estimated class size used to estimate settlement administration costs. The Court continued the hearing to June 1, 2026 and directed Plaintiff to submit a supplemental declaration regarding settlement administration costs. The Declaration of Thomas Wheeler filed May 21, 2026 includes an updated estimate from ILYM for \$14,850.00. The Court preliminarily approves settlement administration costs in an amount up to \$15,000.00. A declaration from ILYM and a final invoice must be submitted prior to final approval.

PAGA: Under the Private Attorney General Act, private parties can assert claims for penalties that otherwise can be recovered only by the Labor and Workforce Development Agency ("LWDA"). Labor Code 2699(a). See also *Dunlap v. Superior Court* (2006) 142 Cal. App. 4th 330, 336. An employee who, through the PAGA, asserts a claim for civil penalties on behalf of the LWDA is acting as an agent of the LWDA. This is evident from the requirement that before initiating a PAGA claim, an employee must provide notice to the LWDA per Labor Code 2699.3(a), and the requirement that that 65% of any recovered civil penalties must be distributed to the LWDA, Labor Code 2699(i). In settling the LWDA's claims, Class Counsel are settling and releasing claims for penalties that belong to the People of the State of California acting through the LWDA. A settlement of LWDA claims should, therefore, provide a reasonable benefit to the state for the settlement of the released claims. The reasonable benefit may be based on the potential value of the recoverable civil penalties discounted by the risk and expense of litigation. In *Nordstrom Com' Cases* (2010) 186 Cal. App. 4th 576, 589, the Court of Appeal held that the Court can approve a settlement even when no money is allocated to the PAGA claims. The Declaration of Zachary Greenberg provides evidence that the LWDA was notified of the settlement prior to the motion being filed and how the PAGA portion of the settlement was determined. The Court notes that no objection was received from the LWDA. The Court finds that the \$65,000 PAGA portion of the settlement is reasonable and confers a substantial benefit on both the State of California and aggrieved employees.

Notice and Notice Procedure. Plaintiff requests approval of the Class Notice attached as Exhibit 1 to Exhibit A to the Declaration of Zachary Greenberg. If a class notice is to be effective, "members of the class must receive the best notice practicable under the circumstances, including individual notice to all members who can be identified through reasonable effort." *Home Sav. & Loan Ass'n v. Sup. Ct.* (1975) 42 Cal. App. 3d 1006, 1012, citing Fed. R. Civ. P. 23(b)(2). The

standard in California is whether the notice "has a reasonable chance of reaching a substantial percentage of class members." *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 251. The Court notes the following issues with the Class Notice that will need to be corrected prior to mailing: 1) Under sections 7 and 9, remove reference to accessing documents on the Court's website. Shasta County Superior Court currently does not provide this option. Individuals may access public documents in person at the Court at any time during normal business hours; 2) Item 3.2.C. at page 24 of the proposed Class Notice indicates costs of up to \$21,000 for settlement administration. This figure must be revised to up to \$15,000. Following the changes noted above, the Class Notice is approved for mailing in the manner described in the Settlement Agreement.

The Motion for Preliminary Approval is **GRANTED** as outlined above. Based on the timeline, it appears that a Final Approval Hearing on **Monday, December 7, 2026, at 8:30 a.m. in Department 64** would provide sufficient time. Absent a request for a different date, the Court will calendar the Final Approval Hearing as noted. A proposed order has been lodged and will be executed.

**** CONFIDENTIAL ****

CASE NUMBER: 26CV-0210238

Tentative Ruling on Petition for Change of Name: This is a Confidential Name Change Proceeding Under the Address Confidentiality Program (Safe At Home). Gov. Code 6206. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name. No personal appearance is necessary on today's calendar. Petitioner may contact the clerk of court to obtain the decree changing name.

MACY'S VS. BLUE-CHIP 2000 COMMERCIAL CLEANING, INC.

CASE NUMBER: 25CV-0209277

Tentative Ruling on Motion to Continue Trial: Defendant Blue Chip 2000 Commercial Cleaning, Inc. moves for a continuance of the trial date and all related deadlines. The motion is unopposed. The Court notes that Defendant has filed a Joint Stipulation to Continue Trial as Exhibit B to the Declaration of Saima Aslam. The Joint Stipulation is signed by counsel for both parties and requests a trial date of March 29, 2027, or the first available date thereafter for trial.

To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain. CRC 3.1332(a). "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." CRC 3.1332(c). The Court finds good cause for continuance under CRC 3.1332. Discovery is in its early stages. Plaintiff is still treating for her injuries. No prior continuances have been requested. Discovery will remain open and deadlines will flow from the continued trial date.

The motion is **GRANTED**. The trial set for October 20, 2026, and the Mandatory Settlement Conference set for August 24, 2026, are **VACATED**. The matter is set for trial on **Tuesday, March 30, 2027, at 8:45 a.m. in Department 64.** The matter is also set for a Mandatory Settlement Conference on **Monday, January 25, 2027, at 1:30 p.m. in Department 64.** Remote appearances are permitted for the Mandatory Settlement Conference. The proposed order will be modified and executed by the Court.